



CHAPTER 17.

An Act to provide for the fixing of a national minimum wage for men employed in agriculture by the week or longer; and for the duties of agricultural wages committees in connection therewith.
[25th April 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Agricultural Wages Board shall, after consultation with the agricultural wages committees and after considering general economic conditions and the conditions of the agricultural industry, fix a national minimum wage and, subject to the provisions of this Act, the minimum rates of wages fixed by the agricultural wages committee for every county shall be such as to secure that no man of full age employed whole time by the week or any longer period in agriculture shall receive, in respect of any week, less than the national minimum wage so fixed :

Duty of
Agricultural
Wages
Board to
fix national
minimum
wage.

Provided that, if the Board are satisfied, on representations made to them in accordance with regulations made under the Agricultural Wages (Regulation) Act, 1924 (hereinafter referred to as "the principal Act"), by the agricultural wages committee for any county, that owing to the special conditions of the agricultural

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industry in that county or in any part thereof the minimum wage for such workers as aforesaid employed in that county or part ought to be lower than the national minimum wage, the Board may fix a lower minimum wage for that county or part in lieu of the national minimum wage, and where such a wage is so fixed this Act shall apply accordingly as if for references therein to the national minimum wage there were substituted references to the minimum wage fixed for that county or part.

(2) The Board may at any time, and, if regulations are made under the principal Act requiring them to do so, shall at such times as may be prescribed, reconsider and, if they think fit, alter the national minimum wage for the time being fixed, and the foregoing provisions of this Act shall apply with respect to the reconsideration and alteration of the national minimum wage in like manner as they apply to the fixing of that wage.

Duty of
agricultural
wages
committees
to conform
to minimum
wage.

2.—(1) It shall be the duty of the agricultural wages committee for every county, within the prescribed period after receiving notification that the national minimum wage has been fixed or altered, to reconsider the minimum rates of wages fixed by them under the principal Act, to make such variations thereof (if any) as may be necessary to secure that every man of full age employed whole time by the week or any longer period in agriculture in their county receives, in respect of every week, not less than the national minimum wage, and, if such variations are made, to notify them to the Board; and if at the expiration of that period the Board are not satisfied that the rates of wages fixed for that county or any part thereof are such as to secure the purpose aforesaid, the Board may exercise the powers conferred on them by section five of the principal Act:

Provided that the regulations prescribing the period within which the duties imposed by this subsection upon agricultural wages committees are to be performed, shall make provision for any necessary extension of that period in cases where a committee decide to make representations to the Board in accordance with the proviso to subsection (1) of section one of this Act.

(2) No rate of wages which has become effective under the principal Act, whether before or after the passing of this Act, shall be open to question on the ground that it does not conform to the requirements of subsection (1) of section one of this Act, but after the expiration of the period first prescribed for the purposes of the last foregoing subsection the Board shall not make an order under section three of the principal Act for carrying out a decision of an agricultural wages committee with respect to any county or part of a county, unless the Board are satisfied that if the order is made the rates of wages for that county or part will conform to those requirements.

(3) It shall be the duty of every agricultural wages committee to have regard to the national minimum wage, not only in fixing minimum rates of wages for men of full age employed whole time by the week or any longer period in agriculture, but also in fixing minimum rates of wages for any other class of workers, but without prejudice to their power to fix for workers of any class rates higher than are necessary to secure compliance with the provisions of this Act.

(4) Among the matters of which agricultural wages committees are required by subsection (6) of section two of the principal Act to give notice before fixing, cancelling or varying any minimum rate of wages, there shall be included the national minimum wage.

3. This Act may be cited as the Agricultural Wages (Regulation) Amendment Act, 1940, and shall be construed as one with the principal Act, and that Act and this Act may be cited together as the Agricultural Wages (Regulation) Acts, 1924 and 1940. Short title,
citation and
extent.

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FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
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